

The Financeability Checklist

Seven questions institutional litigation funders ask before evaluating a case — useful for reviewing your own matter whether or not you ever seek outside capital.

1 Liability vs. damages

Do you know what a win is actually worth, separate from whether you're likely to win? A strong liability story with a weak or unquantified damages story is a weak investment.

2 Damages valuation

Has an expert modeled and stress-tested the number — or is it still a rough, unverified estimate? A damages figure nobody has independently modeled is a guess with a dollar sign in front of it.

3 Collectability

Can the defendant actually pay a judgment? Is there insurance, identifiable assets, and solvency — now and by the time a judgment is enforceable? A judgment you can't collect on is a piece of paper.

4 Counsel & expert quality

Is experienced counsel engaged for this specific type of matter? If the case turns on technical or damages questions, has a credible expert been retained who can survive a Daubert challenge?

5 Duration & time value

How long is this likely to take, including appeals? A great case that takes eight years to resolve is a mediocre investment, no matter how strong the merits look on paper.

6 Financeability economics

Is the claim size large enough to justify a funder's fixed diligence costs (commonly \$1–5M+)? A strong case can still be unfinanceable on size or portfolio fit alone.

7 Portfolio context

Is the matter free of concentration, sector, or publicity concerns for a funder's broader book? A funder's pass doesn't always mean the case is bad — it may just not fit the portfolio.

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